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UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

ROBERTO SANDOVAL CARRILLO, individually and on behalf of all others similarly situated,

Plaintiffs,

vs.

THE VONS COMPANIES, INC.; ONE SOURCE TECHNOLOGY LLC d/b/a ASURINT, and DOES 1-5.

Defendants.

Case No.: 8:25-cv-00191-SRM-KES

PLAINTIFF'S MOTION FOR CLASS CERTIFICATION

Date: April 15, 2026
Time: 1:30 p.m.
Ctrm: 5D
Judge: Hon. Serena R. Murillo

[Filed concurrently with Declaration of Roberto Sandoval Carrillo; Declaration of Raymond Y. Kim; and [Proposed] Order]

NOTICE OF MOTION AND MOTION

TO THE PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE THAT on Wednesday, April 15, 2026, at 1:30 p.m., in Courtroom 5D of the above-entitled Court, located at First Street Courthouse, 350 W. 1st Street, 6th Floor, Los Angeles, California 90012, plaintiff Roberto Sandoval ("Plaintiff") will, and hereby do, move for an order granting certification under Rules 23(a), (b)(2) and (b)(3) of the following classes:

> **Megan's Law Class**: All persons in California who applied for employment with Vons and were denied employment as a result of Vons' use of information disclosed in the Megan's Law Website, during the relevant statute of limitations period.
>
> **Fair Chance Class**: All persons in California who applied for employment with Vons and were denied employment as a result of their conviction history.
>
> **FCRA Class**: All persons in California who applied for employment with Vons and on whom Asurint conducted a background search and furnished a consumer report containing sex offender registry information from the Megan's Law Website that was used by Vons and/or Asurint for employment decisions, during the relevant statute of limitations period.

This motion will be made on the grounds that the prerequisites of Rule 23(a)—numerosity, commonality, typicality and adequacy—are satisfied, as are the requirements of Rule 23(b)(2)-(3), as questions of law and fact common to the class predominate over any questions affecting individual members, use of the class action device is superior to a multitude of individual actions, and injunctive relief is appropriate with respect to the classes as a whole. Plaintiff also will and hereby does move the Court to appoint him as the representative of the Classes and to appoint Ray Kim Law, APC as class counsel.

This motion is made following the conference of counsel pursuant to L.R. 7-3 which took place throughout August to December 2025. Defendants The Vons Companies, Inc. ("Vons") and One Source Technology LLC, d/b/a Asurint ("Asurint").

This motion is based upon this Notice of Motion and Motion and Memorandum of Points and Authorities, the Declaration of Roberto Sandoval Carrillo, Declaration of Raymond Y. Kim, all exhibits and appendices to such documents, the pleadings and other documents on file in this action, and any argument that may be presented to the Court.

Dated: January 14, 2026

RAY KIM LAW, APC

/s/ Raymond Y. Kim
Raymond Y. Kim
Attorneys for Plaintiff
Roberto Sandoval Carrillo

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I. INTRODUCTION

Through this Motion for Class Certification, pursuant to Federal Rule of Civil Procedure 23(a), (b)(2) and (b)(3), Plaintiff Roberto Sandoval Carrillo ("Plaintiff") seeks to certify three separate classes under (i) California Megan's Law, Penal Code § 290.46 ("Megan's Law"); (ii) California Fair Chance Act, Government Code § 12952 ("Fair Chance Act"); and (iii) federal Fair Credit Reporting Act ("FCRA"), 15 U.S.C. § 1681b(b)(2), respectively. The Megan's Law prohibits employers from using sex offender registry information disclosed in the California Department of Justice Megan's Law site ("SOR information") for employment purposes. The Megan's Law Class should be certified because Vons has already identified the Megan's Law Class members, and the predominant, common issue is whether Vons violated the Megan's Law by considering SOR information in violation of the Megan's Law with respect to these prospective employees. The Fair Chance Act requires Vons to conduct an individualized assessment of whether applicants' convictions have a direct and adverse relationship with the specific duties of the job. The Fair Chance Class should be certified because Vons has identified all 901 Fair Chance Class members and the predominant, common issue is whether Vons failed to conduct an individualized assessment with respect to these class members' applications and conviction backgrounds. Other than self-serving deposition testimony, Vons has produced absolutely no records showing that it conducted an individualized assessment with respect to Plaintiff or anyone else's conviction histories. In fact, the class data produced by Vons shows that it has not hired a single person with SOR information in their background reports, and not even a single person with a certain conviction history. Lastly, the FCRA allows a consumer reporting agency like Asurint to furnish a consumer report "only if … information from the consumer report will not be used in violation of any applicable Federal or State equal employment opportunity law or regulation[.]" The FCRA Class should be certified against Asurint because Vons has already identified the 43 persons who are members of the FCRA Class. The predominant, common issue is whether Asurint violated the FCRA by furnishing background reports

with SOR information knowing that Vons was using that information in violation of the Megan's Law. As set forth below, the Court should certify all three damages classes under Rule 23(a) and 23(b)(3). Lastly, given the uniform, ongoing violations, the Court should certify injunctive relief classes pursuant to Rule 23(b)(2) to ensure defendants cease their unlawful conduct. Accordingly, Plaintiff respectfully requests that the Court certify the Megan's Law Class, Fair Chance Class, and FCRA Class and appoint Plaintiff as the class representative, and appoint Ray Kim Law, APC as counsel for the classes.

II. STATEMENT OF FACTS

In 1998, Plaintiff obtained his B.A. in History from San Francisco State University. After obtaining his degree, Plaintiff moved to Southern California and obtained his teaching credential in 2000 and was student teaching for middle school and high school classes during that time. Declaration of Roberto Sandoval Carrillo ("Carrillo Decl."), ¶ 2. For many years until December 2015, Plaintiff worked as an educator in the Sweetwater Union High School District. Plaintiff is also a musician, and during that time Plaintiff also pursued a music career, obtained a certificate from the Berkeley College of Music, and added music as a subject to his teaching credential as a supplemental subject. Plaintiff is a musician in two bands, "Electrovot" and "Pain Love n' War." *Id.*, ¶ 3, Exs. A, B. In 2016, Plaintiff was charged with possessing explicit material of a minor and was convicted in 2017. Due to the conviction, Plaintiff appears as a registered sex offender on the Megan's Law Website, along with information about the basis for his convictions. Plaintiff spent five years in prison and was released in October 2022. *Id.* ¶ 4. Plaintiff deeply regrets his actions. He has made every effort to rebuild and redefine himself by working diligently to become a productive member of his community. While under the influence of alcohol Plaintiff tends to exercise bad judgment. Plaintiff recognizes this, and as a result in 2025 Plaintiff voluntarily asked his probation officer to have a full abstinence condition placed on his probationary guidelines. *Id.* ¶ 5. Since the charge, Plaintiff obtained a paralegal certificate from University of San Diego and has been working to obtain a certificate in Labor Studies from Los Angeles Trade Technical

College with the goal of obtaining a union job. Plaintiff has also sought to find employment and make a living, but employers like Vons have made it difficult, even though Plaintiff is overqualified for many of the positions he has applied for. *Id.* ¶ 6.

In January 2023 Plaintiff applied for a deli clerk position with Vons. Vons gave him a conditional offer of employment, and Plaintiff began work in early January 2023. As a deli clerk Plaintiff stood behind the deli counter taking food orders, measuring, cooking, and serving food, cleaning the deli area, and generally offering great customer service. Plaintiff really enjoyed the job and his colleagues. *Id.* ¶¶ 7-8. On January 24, Asurint sent him an email stating it is reporting "criminal or other public record information" that may be adverse to Plaintiff, and Vons is "using such public record information to determine [his] eligibility for employment." *Id.* ¶ 9, Ex. C. On or about February 28, Asurint completed its investigation and prepared a written background report on Plaintiff. Asurint's background report includes conviction information from the Megans Law website.

SEX OFFENDER REPORT

CALIFORNIA

ROBERTO SANDOVAL	DOB: 4/24/XXXX
Address(es): 551 S 35TH ST, SAN DIEGO, 92113	
Alias(es): ROBERTO A SANDOVAL	

CASE #CA31_46117241F7968 - CALIFORNIA SEX OFFENDER

CASE SUMMARY

Case #	File Date	Court Type	Case Disposition	Disposition Date
CA31_46117241F7968	n/a	SEX OFFENDER	n/a	n/a
Offense(s)	**Offense Date**	**Level**	**Offense Disposition**	**Disposition Date**

CASE DETAILS

Id. ¶¶ 10-11, Ex. D. On February 28, Plaintiff received an email from Vons and Asurint entitled "Pre-Adverse Action" stating that Vons intends to make an adverse action decision based on Plaintiff's SOR information in his background report. *Id.*, ¶ 12, Ex. E.

On March 6, after back and forth email communications with Asurint, Plaintiff emailed Vons and Asurint twice, explaining that Plaintiff was not a "hands on offender" and had been convicted of receiving explicit images of minors, Plaintiff had been under the influence of alcohol at the time, and he did not pose a threat to the public. Plaintiff also provided mitigating and rehabilitation evidence, including letters from former

colleagues and a former therapist attesting to his character and fitness and a Certificate of Achievement for completing the Dual Diagnosis Residential Drug Abuse Treatment Program in July 2022. *Id.* ¶ 13, Ex. F. That same day Vons responded via email, "I have no access to background checks and I am not informed when an applicant fails to pass. I do not have the ability to override your background check. You will need to go through Asurint." *Id.* ¶ 14, Ex. G.

The following day on March 7, 2023, Plaintiff emailed Vons at a different email address. In the email Plaintiff explained, among other things, that "Plaintiff worked as a high school teacher for 15 years, and there were never any incidents of misconduct," and provided the School District's phone number so Vons could verify his statement. Plaintiff also provided the same mitigating and rehabilitation evidence Plaintiff had submitted in his March 6 email to Vons and Asurint. *Id.* ¶ 15, Ex. H. That same day on March 7, Plaintiff received an email from Vons and Asurint with the subject, "Adverse Action Notification." The Adverse Action Notice stated that his employment was terminated based on the SOR information found in the background report. *Id.* ¶ 16, Ex. I. In response to the Adverse Action Notice, on March 8 and 10 Plaintiff emailed Vons inquiring whether Plaintiff could apply for other positions, such as an overnight stocking clerk. Vons did not respond. *Id.* ¶ 17, Ex. J. Based on Vons' responses to his emails and the timing of the Adverse Action Notice, it is clear that Vons did not conduct an individualized assessment of whether Plaintiff's conviction history had a direct and adverse relationship with the specific duties of a Vons deli clerk. Vons did not even consider the fact that Plaintiff had been successfully working at Vons as a deli clerk for two months and had been excelling in his position, so much so that the general manager, Laura, told him Plaintiff could use her as a reference for future employment. In addition, his direct supervisor, Holly, also told him to get assistance from the union and use her as a reference. If Vons would give him a fair chance at employment, Plaintiff would like to apply again to work for Vons. *Id.* ¶ 19. Against this backdrop, on January 31, 2025

Plaintiff filed the class action complaint in this action, seeking to certify the Megan's Law Class, Fair Chance Class and FCRA Class. *See* Complaint, Dkt. No. 1, ¶ 28.

III. LEGAL STANDARD

The primary objectives of Rule 23 is the efficient resolution of the claims or liabilities of many individuals in a single action as well as the elimination of repetitious litigation and possibly inconsistent adjudication. *See Califano v. Yamaki*, 442 U.S. 682, 700-01 (1979); C. Wright, A.Miller & M. Kane, Federal Prac. & Proc. Civil 2d at § 1754 (1986). District courts are afforded broad discretion in determining whether an action should be certified. *Montgomery v. Rumsfield*, 572 F.2d 250, 255 (9th Cir. 1978). Rule 23 outlines a two-step process for determining whether class certification is appropriate. First, Rule 23(a) sets forth four conjunctive prerequisites that must be met for any class: (1) the class is so numerous that joinder of all members is impracticable, (2) there are questions of law or fact common to the class, (3) the claims or defenses of the representative parties are typical of the claims or defenses of the class, and (4) the representative parties will fairly and adequately protect the interests of the class. *See* Fed. R. Civ. P. 23(a); *Hanon v. Dataproducts Corp.*, 976 F.2d 497, 508 (9th Cir. 1992).

"In determining the propriety of a class action, the question is not whether the plaintiff or plaintiffs have stated a cause of action or will prevail on the merits, but rather whether the requirements of Rule 23 are met." *Eisen v. Carlisle & Jacquelin*, 417 U.S. 156, 178 (U.S. 1974) (emphasis added). "[Plaintiff]t is well established that for purposes of class certification, the moving party does not need to establish a likelihood of prevailing on the merits." *McKenzie v. Fed. Express Corp.*, 275 F.R.D. 290, 297 (C.D. Cal. 2011). "Sometimes the issues are plain enough from the pleadings to determine whether the interests of the absent parties are fairly encompassed within the named plaintiff's claim…" *General Telephone Co. of Sw. v. Falcon*, 457 U.S. 147, 160 (1982). "[Plaintiff]t remains relatively clear an ultimate adjudication on the merits of plaintiffs' claims is inappropriate, and any inquiry into the merits must be strictly limited to evaluating plaintiffs' allegations to determine whether they satisfy Rule 23." *Lee v.*

Stonebridge Life Ins. Co., 289 F.R.D. 292, 294 (N.D. Cal. 2013) (citing *Ellis v. Costco Wholesale Corp.*, 657 F.3d 970, 983 n.8 (9th Cir. 2011). "Any doubts regarding the propriety of class certification generally should be resolved in favor of certification." *Wolph v. Acer Am. Corp*., 272 F.R.D. 477, 481 (N.D. Cal. 2011) (citation omitted). Individualized damages are not a bar to class certification. *Leyva v. Medline Indus. Inc.*, 716 F.3d 510, 513-14 (9th Cir. 2013). Similarly, "[m]anageability concerns must be weighed against the alternatives and will rarely, if ever, be sufficient to prevent certification of a class." *Bowerman v. FieldAsset Servs., Inc*., 242 F. 22 Supp. 3d 910, 933 (N.D. Cal. 2017).

IV. ARGUMENT

A. All Three Classes Satisfy Rule 23(a)'s Requirements Of Numerosity, Commonality, Typicality, And Adequacy

1. The Megan's Law Class Satisfies Rule 23(a)'s Requirements

a. Numerosity

Rule 23(a)(l) requires that the class be "so numerous that joinder of all members is impracticable." Fed. R. Civ. P. 23(a)(l). "'Impracticability' does not mean 'impossibility,' but only the difficulty or inconvenience of joining all members of the class.'" *Jane Doe v. Nielsen*, 357 F. Supp. 3d 972,988 (N.D. Cal. 2018) (quoting *Harris v. Palm Springs Alpine Estates, Inc*., 329 F.2d 909, 913-914 (9th Cir. 1964)). "In general, courts find the numerosity requirement satisfied when a class includes at least 40 members." *Holly v. Alta Newport Hosp., Inc*., 612 F. Supp. 3d 1017, 1027 (C.D. Cal. 2020) (*citing Rannis v. Recchia*, 380 F. App'x 646, 650–51 (9th Cir. 2010)). Here, there are over forty (40) persons who were denied employment as a result of Vons' use of information disclosed in the Megan's Law Website. Kim Decl., ¶¶ 14-16. In addition, Vons stipulated that "Vons shall not challenge numerosity with respect to the Megan's Law Class as defined in paragraph 28 of the Class Action Complaint." Order on Second Telephonic Discovery Conference, Dkt. No. 51, at 2. As a result, numerosity is satisfied for the Megan's Law Class.

b. Commonality

The commonality "requirement is met if there are 'questions of law and fact common to the class.' 'Where the circumstances of each particular class member vary but retain a common core of factual or legal issues with the rest of the class, commonality exists.'" *Evon v. L. Offs. of Sidney Mickell*, 688 F.3d 1015, 1029 (9th Cir. 2012) (*citing Parra v. Bashas', Inc*., 536 F.3d 975, 978–79 (9th Cir.2008)). "So long as there is 'even a single common question,' a would-be class can satisfy the commonality requirement of Rule 23(a)(2)." *Wang v. Chinese Daily News, Inc*., 737 F.3d 538, 544 (9th Cir. 2013); *see also Alcantar v. Hobart Service*, 800 F.3d 1047, 1052 (9th Cir. 2015); *Ellis v. Costco Wholesale Corp.*, 657 F.3d 970, 981 (9th Cir. 2011) (noting that not all questions of fact and law in the litigation need to be common).

In this case, common questions of law and fact exist regarding the Megan's Law Class. The Megan's Law mandates the California Department of Justice ("CA DOJ") to notify the public about specified registered sex offenders. CA Megan's Law Website, (https://www.meganslaw.ca.gov/AboutMegansLaw/SummaryOfMegansLaw). The Megan's Law site contains information about persons convicted of specified sex crimes, including their picture, address, physical description and date of birth. Cal. Pen. Code 290.46(b). "Although sex offender registration is not considered a form of punishment under the state or federal Constitution, it imposes a 'substantial' and 'onerous' burden… When it becomes publicly known that a person is a registered sex offender, the person may be at risk of losing employment, and may have difficulty finding a place to live." *People v. Hofsheier*, 37 Cal. 4th 1185, 1197 (2006), *overruled on other grounds by Johnson v. Dep't of Just*., 60 Cal. 4th 871 (2015). Consequently, the Megan's Law expressly prohibits employers from using SOR information for employment purposes:

> Except as authorized under paragraph (1) or any other provision of law, use of any information that is disclosed pursuant to this section for purposes relating to any of the following is prohibited:… Employment.

Cal. Penal Code § 290.46(j)(2)(E); § 33:13. California, 5 Emp. Coord. Employment Practices § 33:13 ("Pursuant to the state's Megan's Law … use of any information on the Megan's Law website to make employment decisions is prohibited[.]"). The prohibition reflects the Legislature deliberate policy choice to balance public safety against misuse and perpetual punishment.

Here, the principal common question is whether Vons used SOR information from in denying employment to Plaintiff and the members of the Megan's Law Class. Additional common questions include: (a) whether Vons' practice of relying on registry information violates the Megan's Law; (b) whether Vons acted knowingly, oppressively, or maliciously in violating the Megan's Law; (c) whether Plaintiff and the other members of the Megan's Law Class are entitled to actual, statutory, punitive or other forms of damages, and other monetary relief; and (d) whether Plaintiff and the other members of the Megan's Law Class are entitled to equitable relief, including but not limited to public injunctive relief. *See* Complaint, Prayer for Relief. Notably, Vons has not hired anyone with a sex crime conviction since January 2021. Kim Decl., ¶¶ 16-17. Thus, regardless of how a factfinder might ultimately answer these questions on the merits, those answers must be resolved on a class-wide basis. Thus, commonality is satisfied.

c. Typicality

Rule 23(a) requires that "the claims or defenses of the representative parties are typical of the claims or defenses of the class." Fed. R. Civ. P. 23(a)(3). Representative claims are typical if they are "reasonably co-extensive with those of absent class members; they need not be substantially identical." *Rodriguez v. Hayes*, 591 F.3d 1105, 1124 (9th Cir. 2010) (quotation marks omitted). The requirement is "satisfied when each class member's claim arises from the same course of events, and each class member makes similar legal arguments to prove the defendant's liability." *Id.* (quotation marks omitted). The purpose of the typicality requirement is to assure that the interests of the class representatives align with the interests of the class. *Wolin v. Jaguar Land Rover N. Am., LLC*, 617 F.3d 1168, 1175 (9th Cir. 2010). The interests and claims of named

plaintiffs and class members need not be identical so long as their claims are based on the same legal or remedial theory. Differing fact situations of the class members do not defeat typicality. *Wolin,* 617 F.3d at 1175.

Here, Plaintiff's claims are co-extensive with Megan's Law Class members' claims. The Megan's Law prohibits the use of registry information for employment purposes. Plaintiff and Megan's Law Class Members were each denied employment as a result of SOR informatoin contained in their background reports. In fact, after receiving a conditional job offer from Vons members of the Megan's Law Class, including Plaintiff, received an Adverse Action Notice stating that the offer of employment had been withdrawn due to registry information in their background reports. In the Adverse Action Notices Vons stated in pertinent part:

> Dear Applicant,
>
> We are writing to inform you that your conditional offer of employment, transfer or promotion with Vons/Pavilions has been withdrawn.
>
> This decision was ***influenced in whole or in part by a pre-employment screening report*** prepared by Asurint. Please note that Asurint did not make this employment decision on behalf of our company. This decision was made pursuant to Vons/Pavilions hiring policies.
>
> We have identified ***the following convictions on your report to be job-related:***
>
> ***Sex Offender***
>
> ***The decision to withdrawal*** [sic] the employment offer ***is based on the fact that one or more convictions were found during the pre-employment screening process***[.]

Kim Decl., ¶ 18; Carrillo Decl., ¶ 16, Ex. I (emphasis added). Plaintiff and at least 40 other persons received substantively identical Adverse Action Notices and were denied employment by Vons based on SOR information contained in their background reports. Kim Decl., ¶¶ 14-18. Thus, Plaintiff's claims are typical.

2. The Fair Chance Class Satisfies Rule 23(a)'s Requirements

a. Numerosity

The Fair Chance Class is defined as: "All persons in California who applied for employment with Vons and were denied employment as a result of their conviction history." Complaint, ¶ 28. There are "approximately 901 persons in California through September 2025 with conviction histories who applied for employment, went through the background check process, and were denied employment with Responding Party, which includes Vons and Pavilions banner stores." Kim Decl., ¶¶ 20-25. As a result, numerosity is satisfied for the Fair Chance Class.

b. Commonality

The Fair Chance Act, codified at Government Code § 12952, provides that "[a]n employer that intends to deny an applicant a position of employment solely or in part because of the applicant's conviction history shall make an individualized assessment of whether the applicant's conviction history has a direct and adverse relationship with the specific duties of the job that justify denying the applicant the position." Cal. Gov. Code § 12952(c). In making the assessment, the employer must "consider all the following: (i) The nature and gravity of the offense or conduct. (ii) The time that has passed since the offense or conduct and completion of the sentence. (iii) The nature of the job held or sought." *Id.* The regulations enforcing the Fair Chance Act describe the "requirements" the employer must follow "[i]f an employer intends to deny an applicant the employment position they were conditionally offered based solely or in part on the applicant's conviction history." 2 C.C.R. § 11017.1(c). The California Civil Rights Division ("CRD") defined "individualized assessment" as "a reasoned, evidence-based determination of whether the applicant's conviction history has a direct and adverse relationship with the specific duties of the job that justify denying the applicant the position." *Id.* In regulation Section 11017.1(c), the CRD mandates the following:

> The individualized assessment must include, at a minimum, consideration of the following factors:

> (i) The nature and gravity of the offense or conduct. Consideration of this factor may include but is not limited to:
>
> (Plaintiff) The specific personal conduct of the applicant that resulted in the conviction;
>
> (II) Whether the harm was to property or people;
>
> (III) The degree of the harm (e.g., amount of loss in theft);
>
> (IV) The permanence of the harm;
>
> (V) The context in which the offense occurred;
>
> (VI) Whether a disability, including but not limited to a past drug addiction or mental impairment, contributed to the offense or conduct, and if so, whether the likelihood of harm arising from similar conduct could be sufficiently mitigated or eliminated by a reasonable accommodation, or whether the disability has been mitigated or eliminated by treatment or otherwise;
>
> (VII) Whether trauma, domestic or dating violence, sexual assault, stalking, human trafficking, duress, or other similar factors contributed to the offense or conduct; and/or
>
> (VIII) The age of the applicant when the conduct occurred.
>
> (ii) The time that has passed since the offense or conduct and/or completion of the sentence. Consideration of this factor may include but is not limited to:
>
> (Plaintiff) The amount of time that has passed since the conduct underlying the conviction, which may significantly predate the conviction itself; and/or
>
> (II) When the conviction led to incarceration, the amount of time that has passed since the applicant's release from incarceration.
>
> (iii) The nature of the job held or sought. Consideration of this factor may include but is not limited to:
>
> (Plaintiff) The specific duties of the job;
>
> (II) Whether the context in which the conviction occurred is likely to arise in the workplace; and/or
>
> (III) Whether the type or degree of harm that resulted from the conviction is likely to occur in the workplace.

2 C.C.R. § 11017.1(c). "To the extent that any evidence of rehabilitation or mitigating circumstances… is voluntarily provided by the applicant… that evidence must be considered as part of the initial individualized assessment. 2 C.C.R. § 11017.1(c); Cal. Gov. Code § 12952(c)(4). In addition, "[t]he employer shall consider any information

submitted by the applicant before making a final decision regarding whether or not to rescind the conditional offer of employment." 2 C.C.R. § 11017.1(c)(3).

Here, the principal common question with respect to the Fair Chance Class is whether Vons conducted an individualized assessment for Plaintiff and Fair Chance Class members according to Section 12952(c) and Regulation 11017.1. Additional common questions include: (a) whether *Albertsons'* Standard Operating Procedures apply here; (b) whether *Albertsons*' Standard Operating Procedures satisfy the Fair Chance Act and the CRD's enforcing regulations requirements for conducting individualized assessment; and (c) whether Vons should be ordered to change its Fair Chance Act procedures to comply with the Fair Chance Act in the future. There is no evidence showing that Vons conducted an individualized assessment with respect to Plaintiff's conditional job offer or any other Fair Chance Class members.

Plaintiff had worked at Vons as a deli clerk for several weeks from January to March 2023, before Vons sent Plaintiff the Adverse Action Notice on March 7, 2023. But there is no evidence Vons considered Plaintiff's successful employment with Vons for those weeks. Plaintiff submitted mitigating evidence, including referral letters and a Certificate of Achievement for completing the Dual Diagnosis Residential Drug Abuse Treatment Program in July 2022. Carrillo Decl., ¶¶ 13, 15, Exs. F and H. Vons did not consider this information, and instead responded, "Plaintiff have no access to background checks and Plaintiff am not informed when an applicant fails to pass. Plaintiff do not have the ability to override your background check. You will need to go through Asurint." Carrillo Decl., ¶ 14 Ex. G. Plaintiff had been convicted of possessing explicit material of a minor in 2017. Plaintiff did not commit any crime towards another person or property. Vons did not consider this information in rescinding Plaintiff's conditional offer. Plaintiff had also requested a different position at Vons, as an "overnight stocking clerk." *Id.*, ¶ 17, Ex. J. Vons did not consider this request either.

Vons has produced absolutely zero business records showing that it conducted an individualized assessment of Plaintiff or anyone else. Kim Decl., ¶¶ 20-25. Vons simply

produced a single document from *Albertsons*, entitled "Standard Operating Procedures Regarding Use and Review of Retail Job Applicants' Criminal Conviction Histories – California" ("Standard Operating Procedures"). Kim Decl., ¶ 22, Ex. 10. These Albertsons' Standard Operating Procedures do not show that Vons conducted any individualized assessments, for Plaintiff or any Fair Chance Class members. Indeed, Vons has gone on record stating that it is not affiliated with Albertsons for purposes of hiring. In response to Plaintiff's written discovery requests, Vons responded:

> Responding Party does not employ employees of Albertsons Companies, Inc., Albertsons, Safeway Inc., or Andronico's. Moreover, the putative class alleged in Plaintiff's complaint only seeks to include employees of The Vons Companies, Inc. Therefore, information related to Albertsons Companies, Albertsons, Safeway Inc., or Andronico's is irrelevant and not reasonably calculated to lead to the discovery of admissible evidence.

Kim Decl., ¶ 22, Ex. 8. In an email Vons' counsel also stated, "Albertsons, Safeway, and Andronicos are not associated with The Vons Companies, Inc. The Vons Companies, Inc. is the entity Mr. Carrillo was hired by and is the entity sued. He was never employed by the Albertsons Companies, Safeway, or Andronicos." *Id.*, 23, Ex. 9. Thus, Vons' production of Albertsons' Standard Operating Procedures does not show it conducted individualized assessments of Plaintiff or of anyone else.

Relatedly, even if Vons did apply Albertsons' Standard Operating Procedures, there lays a common question of whether compliance with the Procedures even satisfies the Fair Chance Act and its implementing regulation. Albertsons' Standard Operating Procedures merely parrot the language of the Fair Chance Act, Section 12952(c). Kim Decl., ¶ 22, Ex. 10. Nothing in the procedures provides steps for employees to follow or includes guidelines or tips for conducting individualized assessments. *Id.* In addition, the Standard Operating Procedures are undated, and it is unclear whether they were in effect for Vons in 2023 when Vons rescinded Plaintiff's conditional job offer. Whether Albertsons' Standard Operating Procedures on their face satisfy the Fair Chance Act's

and the CRD's regulations requirements and whether they were used by Vons to conduct individualized assessments during the applicable time period are common issues impacting all Fair Chance Class members, and these issues should be determined on a class basis.

Thus, regardless of how a factfinder might ultimately answer these questions on the merits, those answers must be resolved through this litigation on a class-wide basis. Thus, commonality is satisfied for the Fair Chance Class.

c. Typicality

Here, Plaintiff's Fair Chance Act claim arises from the same course of events as the class members. Plaintiff claims that Vons obtained background reports disclosing a criminal conviction but failed to conduct an individualized assessment for him and the Fair Chance Class members. Plaintiff along with 900 other prospective employees were denied employment based on their conviction history. Kim Decl., ¶ 26, Ex. 6. In response to Plaintiff's request for documents "showing the results of YOUR individualized assessments" for the 900 prospective employees who were denied employment based on their conviction history, Vons responded, "Responding Party does not have responsive documents other than the types of documents identified in its supplemental response to Request for Production 14 and will not provide that information as it is overbroad and seeks merits-based discovery." *Id.* In response to RFP No. 14, Vons merely produced the Pre-Adverse Action Notice and Adverse Action Notice sent to Plaintiff, mitigating evidence submitted by Plaintiff in response to the Pre-Adverse Action Notice, and Plaintiff's post-conditional offer responses to a questionnaire. Kim Decl., ¶ 24. There is no question all 901 Fair Chance Class members, including Plaintiff, were either all not individually assessed or assessed based on the same defective Standard Operating Procedures. Thus, Plaintiff's claims are typical of the Fair Chance Class members' claims.

3. The FCRA Class Satisfies Rule 23(a)'s Requirements

a. Numerosity

The FCRA Class is defined as: "All persons in California who applied for employment with Vons and on whom Asurint conducted a background search and furnished a consumer report containing sex offender registry information from the Megan's Law Website that was used by Vons and/or Asurint for employment decisions, during the relevant statute of limitations period." Complaint, ¶ 28. Here, there are "approximately 43 persons in California through September 2025 who appeared on the Megan's Law Website and who applied for employment, went through the background check process, and were denied employment with [Vons], which includes Vons and Pavilions banner stores." Kim Decl., ¶ 26, Ex. 6. Thus, numerosity is satisfied.

b. Commonality

The FCRA, Section 1681b(b)(1), provides that "[a] consumer reporting agency may furnish a consumer report for employment purposes only if--… information from the consumer report will not be used in violation of any applicable Federal or State equal employment opportunity law or regulation[.]" In the Complaint, Plaintiff alleges that Asurint furnished consumer reports to Vons with knowledge that the information from the consumer report will be used in violation of the law, including California's Megan's Law. Complaint, Dkt. No. 1, ¶ 65.

The Services Agreement governing the relationship between Vons and Asurint, expressly states, "[Asurint] shall not return Sex Offender Registry information in the states of California and Nevada." Kim Decl., ¶ 28. The Agreement was signed in 2011. However, in 2012 an Addendum was signed which provided that Asurint will provide sex offender registry information at $400.00 per background check. *Id.*

On January 24, 2023 Asurint sent Plaintiff an email stating that "Asurint, a consumer reporting agency, is reporting criminal or other public record information" to Vons, and Vons will use that information "to determine your eligibility for employment, promotion, reassignment, and/or retention," even though the only criminal information in the background report is from the Megan's Law registry. Carrillo Decl., Ex. C. On February 28, 2023, Vons sent Plaintiff a Pre-Adverse Action Notice email stating:

> In evaluating your conditional offer of employment, transfer or promotion with Vons/Pavilions, we received the enclosed screening report that we procured with your authorization from Asurint. This notification is provided because an adverse employment decision (e.g. the withdrawal of a conditional offer of employment, transfer or promotion) may be based, in whole or in part, on this screening report or on information regarding past criminal convictions that you identified during the application process. Please carefully review the screening report. **We have identified the following convictions on your report to be job-related:**
>
> Sex Offender

Id. ¶ 12, Ex. E (emphasis in original). On March 7, 2023, Vons sent Plaintiff an Adverse Action Notice, stating:

> We are writing to inform you that your conditional offer of employment, transfer or promotion with Vons/Pavilions has been withdrawn.
>
> This decision was influenced in whole or in part by a pre-employment screening report prepared by Asurint. Please note that Asurint did not make this employment decision on behalf of our company. This decision was made pursuant to Vons/Pavilions hiring policies.
>
> We have identified the following convictions on your report to be job-related:
>
> Sex Offender
>
> The decision to withdrawal the employment offer is based on the fact that one or more convictions were found during the pre-employment screening process that Vons/Pavilions considers related to the job duties of the position to which you applied.

Id., ¶ 16, Ex. I. Asurint knew that Vons was using the Megan's Law registry information for unlawful means, yet continued to send Vons background reports containing SOR information. Here, the principal common question with respect to the FCRA Class is

whether Asurint conducted a background search and furnished a consumer report containing sex offender registry information from the Megan's Law Website knowing that the information would be unlawfully used by Vons for employment decisions. Additional common questions include: (a) whether such conduct is a violation of FCRA Section 1681b(b)(1); and (b) whether Asurint should be enjoined from engaging in such conduct in the future. Thus, regardless of how a factfinder might ultimately decide these questions on the merits, the answers should be resolved on a class-wide basis. Thus, commonality is satisfied for the FCRA Class.

c. Typicality

Here, Plaintiff's FCRA claim arises from the same course of events as the class members. Plaintiff claims that Asurint provided Vons background reports with SOR information knowing that Vons was using them in violation of the Megan's Law. Asurint generated and provided Vons with more than forty background reports of California residents, including Plaintiff, who Vons denied employment as a result of the SOR information contained therein. All of these Fair Chance Act class members received the same Adverse Action Notice, which shows Vons rescinded the conditional employment offers based on the SOR information contained in the reports. Thus, Plaintiff's claims are typical of the FCRA Class members' claims.

B. Plaintiff And His Counsel Are Adequate Representatives

Rule 23(a)(4) requires that "the representative parties will fairly and adequately protect the interests of the class." Fed. R. Civ. P. 23(a)(4). "In making this determination, courts must consider two questions: '(1) do the named plaintiffs and their counsel have any conflicts of interest with other class members and (2) will the named plaintiffs and their counsel prosecute the action vigorously on behalf of the class?'" *Evon*, 688 F.3d at 1031. Factual differences in the merits of the named plaintiff's underlying claims do not affect their ability to vigorously represent the class. *Wolin,* 617 F.3d at 1175. "Only conflicts that are fundamental to the suit and that go to the heart

of the litigation" may defeat adequacy of representation. *In re Online DVD-Rental Antitrust Litig.*, 779 F.3d 934, 942 (9th Cir. 2015) (citation omitted).

Here, Plaintiff's interests are aligned with those of all class members, because class members have also been harmed by the same misconduct: Vons' use of SOR information in making employment decisions, Vons' failure to give prospective employees with conviction histories a fair shot at employment by failing to conduct an individualized assessment of their fitness for the particular job and categorically denying them employment, and Asurint's generation and provision of consumer background reports with SOR information to Vons knowing that Vons will use the consumer reports for unlawful purposes, i.e. in violation of the Megan's Law. Thus, Plaintiff has no conflicts with the other class members. Further, Plaintiff will continue to prosecute this action vigorously on behalf of the classes. Plaintiff has been, and continues to be, a very actively engaged participant in this litigation, taking time to thoroughly investigate his claims, search for, gather and review hundreds of pages of email communications with his probation officer and employment related documents, taking time away from work to prepare for and appear in-person for his deposition, staying abreast of developments in the case and regularly communicating with counsel, being very responsive to his counsel's communications, and submitting a declaration in connection with the instant motion for class certification. Carrillo Decl., ¶ 20. Further, with his legal background and continuous pursuit of academic goals, Plaintiff has been particularly helpful in pursuing the class claims. *Id.* ¶ 6. Accordingly, Plaintiff is uniquely adequate and qualified to be appointed as the class representative.

Proposed class counsel has likewise demonstrated their adequacy. Raymond Y. Kim of Ray Kim Law, APC, a former "big firm" lawyer of fifteen years and partner at Holland & Knight LLP, has handled consumer protection and FCRA related claims for over seventeen years, has litigated class actions for seventeen years, and has dedicated a significant time and effort to vigorously investigate, plead, and pursue these claims on behalf of the classes. Mr. Kim has been appointed as lead counsel in class actions

numerous times. Ray Kim Law, APC is qualified under Rule 23(g) to continue to represent the class. *See, e.g.*, *Ramirez v. Greenpoint Mortg. Funding, Inc.*, 268 F.R.D. 627, 643 (N.D. Cal. 2010); Kim Decl. ¶¶ 2-5.

C. All Three Classes Satisfy The Requirements of Rule 23(b)(3)

For each of the three classes, common questions predominate over questions affecting individual plaintiffs and a class action is superior to other means of adjudicating all three claims at issue. Fed. R. Civ. P. 23(b)(3).

1. Common Questions Predominate Over Individual Ones

The predominance inquiry under Rule 23(b)(3) requires the court to ask "whether the common, aggregation-enabling, issues in the case are more prevalent or important than the non-common, aggregation-defeating, individual issues." *Tyson Foods, Inc. v. Bouaphakeo,* 577 U.S. 442, 453 (2016) (quotation and citation omitted). "When one or more of the central issues in the action are common to the class and can be said to predominate, the action may be considered proper under Rule 23(b)(3) even though other important matters will have to be tried separately." *Id.* (quotation and citation omitted). "The requirements of Rule 23(b)(3) overlap with the requirements of Rule 23(a): the plaintiffs must prove that there are 'questions of law or fact common to class members' that can be determined in one stroke, in order to prove that such common questions predominate over individualized ones. Therefore, courts must consider cases examining both subsections in performing a Rule 23(b)(3) analysis." *Olean Wholesale Grocery Cooperative, Inc. v. Bumble Bee Foods, LLC*, 31 F.4th 651, 663-64 (2022). Rule 23(b)(3) "does *not* require a plaintiff seeking class certification to prove that each 'elemen[t] of [her] claim [is] susceptible to classwide proof.'" *Amgen Inc. v. Connecticut Ret. Plans & Tr. Funds,* 568 U.S. 455, 133 S. Ct. 1184, 1196 (2013) (citation omitted) (emphasis in original). "[P]redominance in employment cases is rarely defeated on the grounds of differences among employees so long as liability arises from a common practice or policy of an employer. Accordingly, some courts have noted that the presence

of a company policy or practice is a strong indication that common issues predominate." 7 Newberg and Rubenstein on Class Actions § 23:33 (6th ed. 2025) (citations omitted).

a. Megan's Law Class

With respect to the Megan's Law Class, the predominating, common question is whether Vons used SOR information for employment purposes. As expressly stated in its Adverse Action Notices, the SOR information contained in the background reports "influenced" Vons' employment decision, and its decision was "based on the fact that" that SOR information was contained in the background report. Kim Decl., ¶¶ 18-19; Carrillo Decl., ¶ 16, Ex. Plaintiff. Each of the Megan's Law Class members received the substantively identical Adverse Action Notice stating that their SOR information was the reason they were denied employment. Kim Decl., ¶¶ 18-19. What is more, Vons denied employment to all prospective employees with SOR information in their background reports. Kim Decl., ¶¶ 16-17. Therefore, common issues predominate over individual issues with respect to the Megan's Law Class.

b. Fair Chance Class

With respect to the Fair Chance Class, the predominating, common question is whether prospective employees with conviction histories received individualized assessments of their fitness for particular jobs, in compliance with the Fair Chance Act the CRD's regulations, or whether Vons just categorically denied them employment due to their conviction histories. While Vons will argue that whether or not an individualized assessment was conducted is an individualized issue, here Vons has not produced a scintilla of evidence to support a finding that it conducts individualized assessment. *See supra* Sec. IV.A.2.b. Vons has not produced a single business record reflecting an individualized assessment for Plaintiff or anyone else. Vons has no policies or procedures, training manuals, or anything else showing it uses any form of individualized assessment. It merely produced *Albertsons'* Standard Operating Procedures, which are undated and Vons has expressly disavowed as irrelevant to Vons' hiring practices. What is more, the common questions of: (i) whether *Albertsons'* Standard Operating

Procedures apply here; (b) whether *Albertsons*' Standard Operating Procedures satisfy the Fair Chance Act and the CRD's enforcing regulations requirements for conducting individualized assessment; and (c) whether Vons should be ordered to change its Fair Chance Act procedures to comply with the Fair Chance Act in the future predominate.

c. FCRA Class

With respect to the FCRA Class, the predominating, common question is Asurint's generated and provided consumer background reports with SOR information to Vons knowing that Vons will use the consumer reports for unlawful purposes, i.e. in violation of the Megan's Law. In its Second Supplemental Responses, Vons responded, *inter alia*, "There are approximately 43 persons in California through September 2025 who appeared on the Megan's Law Website and who applied for employment, went through the background check process, and were denied employment with Responding Party, which includes Vons and Pavilions banner stores." *See* Kim Decl., **Exhibit 6**, at Second Supplemental Response to Interrogatories, at No. 8. The question of whether or not Asurint's provision of background reports to Vons is a merits inquiry, which has no bearing on class certification this stage. Thus, predominance is easily satisfied with respect to the FCRA Class.

d. Damages May Be Determined On A Classwide Basis

"[Plaintiff]t is black letter law that individualized damage calculations do not render common liability issues non-predominant. Thus, post-*Wal-Mart*, in *Tyson Foods v. Bouaphakeo*—a class action involving allegations of unpaid overtime wages—the Supreme Court restated the settled proposition that 'damages or some affirmative defenses peculiar to some individual class members' do not defeat certification 'when one or more of the central issues in the action are common to the class and can be said to predominate.'" 7 Newberg and Rubenstein on Class Actions § 23:33 (6th ed. 2025) (*citing, e.g., Vaquero v. Ashley Furniture Industries, Inc*., 824 F.3d 1150, 1155, 94 Fed. R. Serv. 3d 1947 (9th Cir. 2016) (holding that the trial court did not abuse its discretion in finding the predominance requirement satisfied notwithstanding individualized damages

calculations). In fact, the Ninth Circuit recently explained that the plaintiff need not even show an existence of classwide damages. *Lytle v. Nutramax Lab'ys, Inc*., 114 F.4th 1011, 1025, 1028 (9th Cir. 2024) ("Nor is there a requirement that class action plaintiffs actually prove that classwide damages exist in order to obtain class certification."), *cert. denied*, No. 24-576, 2025 WL 663695 (U.S. Mar. 3, 2025).

Here, with respect to the Megan's Law Class, Plaintiff will demonstrate liability through common proof that the Vons used SOR information in denying Plaintiff and Megan's Law Class members employment. Whether each class member may recover damages based on their conditional job offer, statutory damages of no less than $250, or a civil penalty up to $25,000.00 is not a bar to finding predominance. With respect to the Fair Chance Class, Plaintiff will demonstrate liability through common proof that the Vons failed to conduct individualized assessments and categorically denied employment for applicants with convictions. In addition to actual damages and statutory damages, Plaintiff also seeks injunctive relief, including Fair Chance Act compliant individualized assessments, Vons' revision of its own hiring policies and procedures, implementation of Fair Chance Act compliant training, and prospective compliance monitoring. With respect to the FCRA Class, Plaintiff will demonstrate liability through common proof that the Asurint generated and provided background reports to Vons with SOR information, knowing that Vons was using the background reports in violation of the Megans' Law. Pursuant to the FCRA, on behalf of the FCRA Class Plaintiff will seek actual damages, statutory damages of $1,000 per FCRA Class member, punitive damages, and an injunction that Asurint cease providing Vons with background reports containing SOR information knowing that Vons uses that information for employment purposes.

2. A Class Action Is The Superior Methods of Adjudication

The second question in establishing predominance of a common question is whether the class action is superior to other methods of adjudicating the controversy. *Just Film, Inc. v. Buono*, 847 F.3d 1108, 1123 (9th Cir. 2017). "In determining

superiority, courts must consider the four factors of Rule 23(b)(3)." *Zinser v. Accufix Research Institute, Inc.*, 253 F.3d 1180, 1190 (9th Cir. 2001).

The *first* factor requires analysis of "the class members' interests in individually controlling the prosecution or defense of separate actions." Fed. R. Civ. P. 3(b)(3)(A). "In cases involving multiple claims for relatively small individual sums, class actions are superior because they 'permit the plaintiffs to pool claims which would be uneconomical to litigate individually.'" *Vvanti v. O'Reilly Auto Enters., LLC*, No. 2:19-CV-02407-WLH-JPR, 2023 WL 4445531, at *12 (C.D. Cal. July 10, 2023). Where, as here, "damages suffered by each putative class member are not large, this factor weighs in favor of certifying a class action." *Zinser*, 253 F.3d at 1190; *Rai v. Santa Clara Valley Transp. Auth.*, 308 F.R.D. 245, 265 (N.D. Cal. 2015). In this case, the damages suffered by each Class member is relatively small compared to the burden and expense of individual prosecution, which could run hundreds of thousands of dollars per case. *Vvanti*, 2023 WL 4445531, at *12 (in wage and hour class action, finding recovery of several thousand dollars is "'small when compared to the expense and burden of litigation,' such that individuals have a low interest in litigating the alleged wage claim violation and might not have interest at all outside of a class action.").

The *second* factor considers "the extent and nature of any litigation concerning the controversy already begun by or against class members." Fed. R. Civ. P. 23(b)(3)(B). This factor weighs in favor of class certification because no pending litigation concerning the Megan's Law, Fair Chance Act, or FCRA Section 1681b(b) against Vons or Asurint exists. *Gomez v. J. Jacobo Farm Lab. Contractor, Inc.*, 334 F.R.D. 234, 270 (E.D. Cal. 2019) (finding predominance because "there does not appear to be any other already-pending litigation concerning the controversy.") (citations omitted). The *third* factor examines "the desirability or undesirability of concentrating the litigation of the claims in the particular forum." Fed. R. Civ. P. 23(b)(3)(D). Here, "judicial economy would be served by concentrating the many class members' claims into one forum and one case, as opposed to multiple forums and dozens or hundreds of individualized cases." *Gomez*,

334 F.R.D. at 270. Plaintiff is a California resident bringing two California statutory claims and a federal FCRA claims on behalf of California residents, against Vons, who is headquartered in California, and Asurint, who regularly does business in California.

The final factor requires that the court consider "the likely difficulties in managing a class action." Fed. R. Civ. P. 23(b)(3)(D). "Manageability concerns must be weighed against the alternatives and 'will rarely, if ever, be…sufficient to prevent certification of a class.'" *Campbell v. PricewaterhouseCoopers, LLP,* 253 F.R.D. 586, 605 (E.D. Cal. 2008) (*quoting Klay v. Humana, Inc.,* 382 F.3d 1241, 1272 (11th Cir. 2004)). Here, class certification presents no insurmountable case management problems and, in fact, serves the interests of judicial economy. Class certification will avoid needless expenditure of time, effort, and money in pursuing individual lawsuits and the potential for inconsistent outcomes. Accordingly, Plaintiff's proposed class mechanism is the superior means for addressing the issues raised in this action.

D. The Court Should Certify The California Class Under Rule 23(b)(2) For Injunctive Relief

California's UCL and FEHA provide for injunctive relief. Cal. Bus. & Prof. Code § 17203; Cal. Gov Code § 12965. Rule 23(b)(2) "inquiry does not require an examination of the viability or bases of the class members' claims for relief, does not require that the issues common to the class satisfy a Rule 23(b)(3)-like predominance test, and does not require a finding that all members of the class have suffered identical injuries." *Parsons v. Ryan*, 754 F.3d 657, 688 (9th Cir. 2014). Instead, class certification under Rule 23(b)(2) is appropriate when "the party opposing the class has acted or refused to act on grounds that apply generally to the class, so that final injunctive relief or corresponding declaratory relief is appropriate respecting the class as a whole." Fed. R. Civ. P. 23 (b)(2). "It is sufficient if class members complain of a pattern or practice that is generally applicable to the class as a whole" and a class may be certified "[e]ven if some class members have not been injured by the challenged practice." *Walters v. Reno*, 145 F.3d 1032, 1047 (9th Cir. 1998); *see Hart v. Colvin*, 310 F.R.D. 427, 438 (N.D. Cal.

2015). Moreover, "[i]n contrast to Rule 23(b)(3) classes, the focus is not on the claims of individual class members, but rather whether [defendant] has engaged in a 'common policy.'" *In re Yahoo Mail Litig.*, 308 F.R.D. at 599. And "questions of manageability and judicial economy are irrelevant to 23(b)(2) class actions." *Sidibe v. Sutter Health*, No. 12-CV-04854, 2019 WL 5295062, at *29 (N.D. Cal. Oct. 18, 2019). Accordingly, as the Ninth Circuit held, Rule 23(b)(2) is "unquestionably satisfied when members of a putative class seek uniform injunctive or declaratory relief from policies or practices that are generally applicable to the class as a whole." *Parsons*, 754 F.3d at 688; *see Ries v. AZ Beverages USA LLC*, 287 F.R.D. 523, 541 (N.D. Cal. 2012) ("This case exemplifies the kind of action that may be appropriate for certification under Rule 23(b)(2), at least insofar as plaintiffs request: (1) declaratory relief that the alleged practices are unlawful, and (2) injunctive relief prohibiting defendants from continuing them.").

Pursuant to the UCL and the FEHA, Plaintiffs seek a uniform injunctive relief in the form of an order: (i) prohibiting Vons from using SOR information in its employment decisions, by barring Vons from procuring background reports from Asurint with SOR information (as it originally did in 2011) or some other reasonable, effective method; (ii) mandating that Vons create and implement its own Fair Chance Act compliant individualized assessments that comply with CRD regulation 2 C.C.R. § 11017.1(c), Vons' revision of its own hiring policies and procedures, implementation of Fair Chance Act compliant training, and prospective compliance monitoring; and (iii) prohibiting Asurint from generating and providing Vons with background reports containing SOR with knowledge that Vons uses the background reports in violation of the Megan's Law.

V. CONCLUSION

Based on the foregoing, Plaintiff respectfully requests that the Court certify the Megan's Law Class, Fair Chance Class, FCRA Class, and appoint Plaintiff and Ray Kim Law APC as representatives of the classes.

Dated: January 14, 2026

RAY KIM LAW, APC

/s/ Raymond Y. Kim
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